

LAST WILL AND TESTAMENT

of ZIEMEK SMITH

I, **ZIEMEK SMITH**, of the City of Toronto, in the Province of Ontario, declare this to be my Last Will and Testament. I revoke all wills and codicils previously made by me.

1. MY FAMILY

I am married to **Emma Smith** (my "spouse"). I have two children: my daughter **Lisa Williams** and my son **Oliver Smith**, who is a minor at the date of this Will. All references in this Will to "my children" are to them.

2. EXECUTOR

I appoint my friend **Margaret O'Brien** to be the Executor and Trustee of this Will. If Margaret O'Brien is unable or unwilling to act, or ceases to act, I appoint **Anita Sharma** as alternate Executor and Trustee. My Executor may employ and pay advisors, and I request that my Executor consult my wealth advisor, **John Carter**, on the management and sale of my investments.

3. GUARDIAN

If my spouse does not survive me, I appoint my brother-in-law **Robert Chen** to be the guardian of the person and property of any of my children who is a minor at the date of my death.

4. PAYMENT OF DEBTS

My Executor shall pay out of my estate my legally enforceable debts, funeral and testamentary expenses, and all income and other taxes payable as a result of my death.

5. PERSONAL EFFECTS

I give my jewellery and household contents to my spouse, Emma Smith, if she survives me by thirty days. If she does not, they shall be divided between my children as they agree, or failing agreement, as my Executor decides.

6. CHARITABLE GIFT

I give the sum of Ten Thousand Dollars (\$10,000) to the **Toronto Humane Society**, for its general purposes.

7. RESIDUE OF MY ESTATE

I give the residue of my estate to my spouse, Emma Smith, if she survives me by thirty days. If she does not, I give the residue in equal shares to my children, Lisa Williams and Oliver Smith. The share of a child under the age of twenty-five years shall be held in trust by my Executor until that child reaches that age, and my Executor may use the income and capital for the child's benefit in the meantime.

8. POWERS OF MY EXECUTOR

My Executor may sell, call in or convert any part of my estate, may retain any investment, and may make any distribution in money or in kind at values my Executor considers fair. My Executor shall not be required to post a bond.

9. ORIGINAL OF THIS WILL

The signed original of this Will is kept in my safe deposit box at the Royal Bank of Canada, 200 Bay Street, Toronto.

IN WITNESS WHEREOF, I have signed this Will at Toronto, Ontario on the 28th day of July, 2024.

Ziemek Smith, Testator

SIGNED by the Testator in our presence, and by us in the presence of the Testator and of each other, all being present at the same time. Neither of us is a beneficiary under this Will.

Witness: Kevin Brooks

12 Elm Avenue, Toronto

Witness: Sarah Lindqvist

48 Queen Street East, Toronto

Sworn before me on July 28, 2024. Helen Park, Notary Public. Prepared by David Kim, Kim & Associates LLP.